



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PLTA-25-3 – Amending UDC Sections 1.4.3, 1.4.4.e, and 5.7.2.
Date: April 28, 2025

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/28/2025
- Public Services Committee 5/5/2025
- Second reading 5/12/2025
- Public Services Committee 5/19/2025
- Third and final reading 5/27/2025

Planning Commission Recommendation:

The Planning Commission heard this item at their April 21, 2025, meeting and unanimously voted to recommend the Governing Body approve the proposed text amendment with the following change:

5.7.2.e reads as follows:

No exterior storage of materials or equipment is permitted. No storage of [more than one motorized vehicle and trailer](#) associated with the business may be in the public right-of-way.

Planning Commissions proposed change is reflected in the attached ordinance.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTIONS 1.4.3, 1.4.4, AND 5.7.2 OF THE UNIFIED DEVELOPMENT CODE TO AMEND SPECIFIC USES ALLOWED AS HOME OCCUPATIONS AND ADD CLARIFYING DEFINITIONS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code of the City of Cheyenne (UDC).

Section 2. That on April 21, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.3 of the UDC is amended to add the following definitions and read as shown in Exhibit A, which is attached hereto and incorporated herein.

Massage Parlor. A business establishment where massage services are provided, which does not meet the definition of Massage Therapy.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a massage therapist, who typically undergoes extensive training and holds a license to practice.

Section 4. That Section 1.4.4.e of the UDC is amended as follows and to read as shown in Exhibit A, which is attached hereto and incorporated herein.

Automobile Service Repair. A Commercial use engaged in the repair, maintenance, condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.

Section 5. That Section 5.7.2 of the UDC is hereby amended to read:

5.7.2 Home Occupations

In districts where home occupations are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

- a. Home occupations include, but are not limited to, arts and crafts-making, tailoring or seamstress services, one or two person professional offices (medical, insurance, law, etc.), music instruction and wholesale/catalogue sales.

- b. Home occupations are intended to allow limited business activity from the home but shall not alter the character of the neighborhood.
- c. Additional off-street parking may be required for the home occupation business if more than three clients per day are expected to visit the business or if vehicles associated with the business are stored at the place of the home occupation. No additional parking spaces shall be provided in the front yard setback (or within the side yard setback if the property is a corner lot). Where needed additional parking would alter the character of the neighborhood the home occupation shall be prohibited.
- d. There shall be no offensive noise, vibration, smoke, dust, odors, heat or glare noticeable at or beyond the property line.
- e. No exterior storage of materials or equipment is permitted. No storage of more than one motorized vehicle and trailer associated with the business may be in the public right-of-way.
- f. Signage will be limited to one non-illuminated sign not more than three square feet in area per home.
- g. No retail sales are permitted from the site other than incidental sales related to services provided.
- h. Not more than one employee or co-worker other than the permanent resident(s) can work on the site.
- i. An “in-home” business operating from a residential dwelling within shall be registered in the home occupation data base, administered through the City Planning and Development Department and all applicable registration fees shall be paid.
- j. Specific Exclusions. The following businesses shall not be allowed as home occupations:
 - 1. Automobile Service Repair, however automobile detailing and/or cleaning shall be allowed as a home occupation with the following additional restrictions:
 - (a) No more than three customers per day.
 - (b) No more than one customer vehicle parked at the property at a time.
 - (c) Vehicles that are being serviced must be parked on the property and cannot be parked in the street at any time.
 - 2. Massage parlors;
 - 3. Beauty parlors/salons, nail salons and barber shops if employing anyone other than the permanent residents of the property;
 - 4. Animal grooming salons and boarding kennels;
 - 5. Body piercing/body art/tattoo art;
 - 6. Massage Therapy if employing anyone other than the permanent residents of the property.
- k. Specific Allowances.
 - 1. Mobile Service Providers Permitted at Client Residences. Certain businesses that involve providing services at a client’s home are permitted to operate at the client’s residence and are not subject to home occupation regulations at that location provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include house-call veterinarians, mobile massage therapists, mobile pet groomers, and similar providers.
 - 2. Office-Only Use for Off-Site Businesses. A business that is not typically permitted to operate as a home occupation may be allowed if the home is used exclusively for office-related functions and no clients, customers, employees, or business activities

take place at the home provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include administrative work, scheduling, bookkeeping, or storage of vehicles or materials related to businesses that operate off site like food trucks, lawn care businesses, snow removal services, etc.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

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- b. The minimum story shall be 9' and the maximum story shall be 14', except that the height of the first story may be as high as 20' for all non-residential buildings that are 2 stories or more.
 - c. *Exception:* Where ground floor manufacturing uses, or warehouse retail is allowed in the zoning district, buildings for those uses shall have no limit on the first story and the maximum building height expressed in feet shall control.
- 2 *Half-story.* A space under a sloping roof that has the line of intersection of the roof and the exterior wall supporting the roof not more than 3' above the floor level, and in which space the possible floor area with head room of 6' or more occupies between 30% and 70% of the total floor area of the story directly beneath.
- l. **Wall plane.** Any plane of continuous vertical, horizontal, or angled or inclined orientation which represents the exterior surface of a building or structure and which is not off-set by projections or recessions of at least 18 inches. Greater required off-sets and required total area of off-sets for wall planes may be specified in the context of these regulations.

1.4.3 Defined Terms

All words and phrases shall have their ordinary and customary meanings unless the context of the word or phrase indicates otherwise. The following terms shall have the meaning given below, unless the context of the use of the term clearly indicates otherwise based on the Purposes, Intent, Design Objective or other guidance associated with its use in a particular section.

Abutting. A description of proximity where two elements share a common boundary.

Access Point. A driveway, internal access street or similar vehicular entrance or exit to the interior of a block, lot or parcel from a street.

Accessory Use. A subordinate use, clearly incidental and related to the principal use and located on the same property.

Activity Center. Places where economic and social activity are focused. In addition, where the code specifically references PlanCheyenne or references specific types of activity centers described in PlanCheyenne the additional guidance in the Plan may be used to determine the context or applicability of a particular standard.

Adjacent. A description of the proximity of two elements which includes abutting and any surrounding vicinity where the impacts described could be reasonably assumed to extend.

Alley. A low capacity, low speed and minor street or access way typically located on the rear or side of properties and used for access to parking, service areas, accessory buildings or easements and not intended for through traffic.

Antenna. Any exterior transmitting or receiving communication device mounted on a tower, building or structure and used in communications that radiate or capture electromagnetic waves, digital signals, analog signals, radio frequencies (excluding radar signals), wireless telecommunications signals or other communication signals.

Appeal. A written request for a review of any final action or decision allowed by the provisions of this Title.

Applicant. Any person(s), firm, corporation or entity requesting permission or desiring to officially apply for any action regulated by this Title.

Average Daily Traffic (ADT). The total volume of vehicles during a given time period (in whole days greater than one day and less than one year) divided by the number of days in that time period.

Awning. A shelter constructed of non-rigid materials along windows and sidewalks at the first story of a building, and mounted on a supporting framework projecting from and supported by the exterior wall of a building.

Base Flood Elevation. The elevation of the flood having a one percent chance of being equaled or exceeded in any given year.

Berm. A mound of earth designed to provide a screen.

Best Management Practice. A technique, process, activity, or structure used to reduce pollutant discharges in stormwater. BMPs include source control practices (non-structural BMPs) and engineered structures designed to treat runoff. BMPs are most effective when used in combination and selected and designed based on site-specific characteristics.

Bicycle Route. A portion of a system of bikeways designated by appropriate route markers which can be a bicycle trail or bikeway.

Bicycle Trail. A trail or path separated from motor vehicles and designated exclusively for bicycles or shared by bicycles and pedestrians.

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Bikeway. A street designed to incorporate bicycle travel through either shared vehicle / bicycle lanes or designated bicycle lanes.

Billboard. A sign structure advertising an establishment, a message, merchandise, service or entertainment which is not located, sold, produced, manufactured or furnished at the property on which the sign is located. Billboard includes Digital Billboard as defined in this code.

Blinking. A form of flashing where the pattern of sudden illumination changes occurs with more than 2 on-off cycles per second.

Block. An area of land that is entirely bounded by streets or other boundary permitted by these regulations where streets are not appropriate based on the context.

Block Frontage. The side or sides of a block that the majority of the lots or tracts face.

BMP Maintenance. Routinely scheduled activities, as well as non-routine repairs that may be required after large storms, or as a result of other unforeseen problems, as necessary to ensure proper BMP function.

Building. Any structure used or intended for supporting or sheltering any use or occupancy.

Building, Accessory. A detached, subordinate structure, the use of which is clearly incidental and related to that of the principal building or use of the land, and which is located on the same property as that of the principal structure or use.

Building, Attached. A building having one or more party walls in common with an adjacent building.

Building, Detached. A building having no common wall or structural attachment with another building.

Building, Existing. A building erected prior to the adoption of the ordinance codified in this Title, or prior to the effective date of a provision in this Title, whichever is earlier, or one for which a building permit has been issued, or erected in accordance with this code after its adoption.

Building, Nonconforming. A building existing or one for which a building permit has been issued at the time of the adoption of this code which does not comply with the regulations of the zoning district in which the building is located.

Building, Principal. A building in which is conducted the main or principal use of the property on which the building is situated.

Canopy. A shelter constructed of rigid materials covered with fabric, metal or other material, along windows and sidewalks at the first story of a building, and projecting from the exterior wall, which may be freestanding or supported by a building at one or more points and by columns or posts embedded in the ground at other points.

Caretaker Unit. One or more living quarters or lodging facilities located within a non-residential building for the use of employees of the use. A Caretaker Unit shall not be considered a 'residential use' or 'residential unit' for the purposes of this code but shall be considered part of the non-residential square footage for the purposes of the code. The combined square footage of all Caretaker Units shall not comprise more than ten (10) percent of the principal use's building square footage (should dwelling area exceed this amount, the living area shall be determined to be a "Mixed-use Dwelling" and a residential use for the purposes of this code). A Caretaker Unit is allowed as part of the approval of the principal use without any more restrictive approval process than that warranted for the principal use.

Certificate of Compliance. A certificate issued by the Development Office which indicates that the site plan requirements have been met.

Changeable Sign. A sign whose informational content can be changed or altered by manual, electric, electromechanical or electronic means. Changeable signs do not include Digital Billboards as defined in this code.

Change of Use. Change of use constitutes at least one of the following:

1. The proposed use is appreciably different than the current use;
2. There is an increase in the size of the existing building or extent of the use of the land;
3. The use is permitted in the zoning district in which the use is located, but requires more parking than the previous use;
4. The number of vehicle trips generated by the new use is or will be greater than the number of vehicle trips generated by the previous use as determined by the Institute of Transportation Engineers Trip Generation, latest edition;
5. The amount of stormwater runoff or impervious (to drainage) surface area will be increased with the new use.

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Channel. A natural or artificial watercourse with a definite bed and banks that conveys continuously or periodically flowing water. Interchangeable terms include creek, drainageway, river, stream, and watercourse.

City Engineer. The City of Cheyenne City Engineer, his designated representative or the City Engineering Department.

Comprehensive Plan. The general plan for land use, transportation, utilities, annexation, and community facilities prepared and maintained by the Commission, and any other more specific plan, program or policy prepared under the guidance of that plan.

Construction, New. Structures for which the construction commenced on or after the effective date of the ordinance codified in this Title.

Construction, Start of. The first placement of permanent construction of a structure (other than a manufactured home), such as the excavation of footings or foundations, or the pouring of slabs or foundations. Permanent construction does not include land preparation, such as clearing, grading and filling, nor does it include the installation of streets and/or sidewalks. For a structure (other than a manufactured home) without a basement or poured footings, the "start of construction" includes the first permanent framing or assembly of the structure or any part thereof on its piling or foundation. For manufactured home not within a manufactured home park or subdivision, "start of construction" means the affixing of the manufactured home to its permanent site. For manufactured home within manufactured home parks or manufactured home subdivisions, "start of construction" is the date on which the structure is to be affixed.

Corner lot. See "Lot, corner."

Crosswalk. Any portion of a roadway distinctly indicated for pedestrian crossing.

Cul-de-sac. A short dead-end street terminating with a vehicular turn-around area.

Curb Radii. The curved or flared portion of a street curb at driveway approaches or intersections.

Decorative Fence. A fence constructed out of materials such as wood, stone, or metal, or a combination thereof, primarily for aesthetic purposes to enhance the appearance of a property and generally not obstructing the visibility into or out of a property. A decorative fence shall not include chain link, wire, snow fences, or a standard wooden or vinyl privacy fences

Detention. The temporary storage of storm runoff in a stormwater management facility with the goals of controlling peak discharge rates and providing gravity settling of pollutants.

Detention Facility. A detention basin or alternative structure designed for the purpose of temporary storage of stream flow or surface runoff and gradual release of stored water at controlled rates.

Developer. The owner of land proposed for development, or the owner's authorized representative, or any person who causes the following to take place either directly or indirectly: division of property for the purpose of development; sells, leases or develops property, or offers or advertises or otherwise engages in business for the same; or has control or is controlled in such a way to have influence in any of the above.

Development. Any man-made change to real estate, including, but not limited to, the construction of buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling.

Development Footprint. The development footprint is the total land area that is permanently affected by development activities, and includes buildings, structures, hardscape, utilities, roads and parking areas, maneuvering areas, storage areas, areas associated with the use on the property, and areas cleared of natural vegetation and topsoil.

Digital Billboard. A billboard displaying static images controlled by electronic communications.

Dissolve. A transition between digital messages that is achieved with varying light intensity and where the first message gradually appears to dissipate and loses legibility simultaneous to the gradual appearance and legibility of the subsequent message.

Double frontage lot. See "Lot, double frontage."

Drive-in or Drive-up Facility. A portion of an establishment designed for retail or service to persons in automobiles, including a driveway approach, order facilities, signs and delivery windows.

Driveway. A vehicle access way located on private property.

Driveway Approach. A constructed vehicle access point within the right-of-way between the roadway and the adjacent property line.

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Dwelling Unit. One or more rooms which are intended for human occupancy as a place of residence with facilities for living, cooking and eating for one family unit, manifesting around one single kitchen, excluding wet bars with no stove or range, and one single laundry facility. Cooking facilities and other accommodations, such as laundry, should be accessible to all occupants of the dwelling through internally connected spaces.

Easement. A permanent or temporary grant of right by a property owner to the public, a corporation or other person(s) for the use of a strip or parcel of land for specified purposes. Ownership shall remain with the property owner.

Electrical Sign. A sign or sign structure in which electrical wiring, connections or fixtures are used. Electrical sign does not include a digital billboard as defined in this section.

Fade. A transition between static message displays that is achieved with varying light intensity and where the first message gradually loses light intensity to the point of not being legible and the subsequent message gradually increases intensity to the point of legibility.

Family Unit. One or more persons who are related by blood, marriage, domestic partnership or legal adoption living together as a single household; or a group of not more than four (4) persons not related by blood, marriage, domestic partnership or legal adoption, living together as a single household.

Fence. A man-made partition, structure, wall or a gate erected as a dividing marker, barrier, enclosure or screening device.

Flag. A sign made of fabric or other non-rigid material with no enclosing framework containing distinctive colors, patterns, or symbols, used as identification for or a symbol of a government, political subdivision, or other entity.

Flashing. A pattern of changing light illumination where the sign illumination alternates suddenly between fully illuminated and fully non-illuminated in a time frame of less than 4 seconds.

Floor Area Ratio (FAR). The total square feet of the building divided by the total square feet of the lot the building is located on.

Foot Candle. A unit of illuminance equal to 1 lumen, uniformly incident upon an area of 1 square foot.

Freeboard. A factor of safety usually expressed in feet above a flood level for purposes of floodplain management. Freeboard

compensates for the many unknown factors that could contribute to flood heights greater than the height calculated for the design flood.

Functional turf grass. An area of living turf grass or lawn that is used regularly for human recreational purposes or domestic animal use. Functional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Garage. A building or portions of a building for the storage of automobiles or other property, accessory to the principle use of the site.

Greenway. A linear open space established along either a natural corridor, such as a stream valley, or overland along a road or railroad right-of-way converted to recreational use; a natural or landscaped course prepared for pedestrian or bicycle passage; certain designated strips or linear parks and open spaces connected and designated by the City as part of the Greenway System.

Height. When referring to a tower or other structure, height is the distance measured from the finished grade of the parcel to the highest point on the tower or other structure, including the base pad and any antenna.

High-power Transmission Lines. Transmission lines which carry sixty-nine thousand (69,000) volts or more.

Immediate. A transition between static message displays that is achieved in 2 seconds or less.

Impoundment Yard. A fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, a government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

Improvement. Buildings, structures and all facilities of a public nature indented for public use – including streets, sidewalks, curbs, gutters, alleys and other public ways, parks, recreational facilities, water, sewage, solid waste disposal and other sanitary systems and facilities.

Infill Development. For commercial or residential parcels shall be defined by the following criteria:

1. One parcel surrounded by urban development on at least three sides (does not have to be directly adjacent to); and
2. Served by existing underground sewer and water utilities.

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Infiltration. The process of percolating stormwater into the subsoil.

Interior lot. See “Lot, interior.”

Intermittent. A pattern of changing light intensity, other than that achieved with immediate, fade or dissolve transitions, where any message remains static for over 4 seconds.

Intersection. The junction of two streets.

Land Disturbance Activity. Grading, digging, cutting, scraping, or excavating of soil, placement of fill materials, paving, construction, substantial removal of vegetation, or any activity which bares soil or rock or involves the diversion or piping of any natural or man-made watercourse.

Landscape Points System. The point system used for determining the minimum vegetation requirement.

Landscaped Setback. The minimum required landscaping area on private or government-owned property which is adjacent to a property line common to a street right-of-way. Driveways and sidewalks to afford required access shall be allowed to interrupt this required space.

Landscape, Street Tree Area. The landscaped area between property line and the street, within the right-of-way.

Landscaping. Any combination of living plants, such as trees, shrubs, vines, ground covers, flowers or grass; natural features, such as rock, stone, bark chips or shavings; and structural features, including, but not limited to, fountains, reflecting pools, outside art work, screen walls, fences or benches.

Landscaping, Internal. That area that lies within the property lines not covered by buildings, parking, outside storage, sidewalks and driveways.

Landscaping, Xeriscape. A water-saving landscape design that limits turf areas, utilizes mulches, efficient irrigation (often drip or subsurface) and use of native or drought-tolerant plant materials. When done properly, it is as lush and green as traditional landscapes, but has the benefits of lower water use and less maintenance after establishment.

Loading Space. An on- or off-street space for the standing, loading, and unloading of vehicles, people or articles.

Lot. A designated unit of land established by a plat or otherwise as permitted by law, for the transfer of ownership or to be used, developed, or built upon, whether immediate or future.

Low Impact Development (LID). An approach to land development (or redevelopment) that works with nature to manage stormwater as close to its source as possible. LID emphasizes conservation and use of on-site natural features to protect water quality. This approach implements engineered small-scale hydrologic controls to mimic the pre-development hydrologic regime of watersheds through infiltrating, filtering, storing, evaporating, and detaining runoff. The term Green Infrastructure may also be used.

Major Drainageway. Any drainage flow path mapped with an area of special flood hazard on the Flood Insurance Rate Map (FIRM).

Manufactured Home. A structure transportable in one or more sections which, in the traveling mode, is 8 body feet or more in width or 40 body feet or more in length or, when erected on site, is 320 or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air-conditioning and electrical systems contained therein; except that such term shall include any structure which meets all the requirements of this paragraph except the size requirements and with respect to which the manufacturer voluntarily files a certification required by the secretary (HUD) and complies with the standards established by HUD. For manufactured homes built prior to June 15, 1976, a label certifying compliance to the standard for mobile homes, NFPA 501, ANSI 119.1, in effect at the time of manufacture is required.

Massage Parlor. A business establishment where massage services are provided which does not meet the definition of Massage Therapy.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a massage therapist, who typically undergoes extensive training and holds a license to practice.

Moving Light. The physical change in position of any visible illumination source while lighted or the simulation of movement achieves with a pattern of sequentially illuminating visible illumination sources within close proximity to each other.

MS4 Permit. A state or federal stormwater discharge permit to regulate discharges from municipal separate storm sewer systems (MS4s) for compliance with Clean Water Act regulations; used interchangeably with the term National Pollutant Discharge Elimination System (NPDES) permit and

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collectively referred to as federal stormwater discharge permit.

Nonfunctional turf grass. An area of living turf grass or lawn that is not used regularly for human recreational purposes or domestic animal use. Nonfunctional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Nonpoint Source Pollution. Pollution from any source other than from any discernible, confined, and discrete conveyances, and shall include, but not be limited to, pollutants from agricultural, silvicultural, mining, construction, subsurface disposal and urban runoff sources.

Off-premise Sign. Any sign not identified as a “Billboard” and which is used for the purpose of displaying, advertising, identifying, or directing attention to a business, service, activity or place, including products or services sold or offered for sale, on premises other than the premises where such sign is displayed.

Open Space Systems. A system of various types of outdoor space, designed to function as aesthetic, recreation, and ecological support for development. Elements of the open space system can include private, common, or public open spaces.

Owner. The owner of record of a parcel of land, as recorded in the office of the county clerk.

Parapet. The architectural enhancement in the design of the façade that extends ornamental details above a roof line to the extent necessary to screen the roof and roof-top equipment.

Parcel. A contiguous unit of land owned and recorded as the property of the same persons or controlled by a single entity.

Parking Lot. An area other than a street or alley designated for the parking of five or more motor vehicles.

Parking Space. A space specially designed for the parking of a motor vehicle.

Party Wall. A wall common to two or more units which are intended to be individually owned.

Pedestrian. A person on foot or a self-propelled conveyance intended for use of persons with physical impairments.

Person. An individual, firm, corporation, partnership, or association, or any combination of these, or any other legal or commercial entity acting as a unit.

Pre-existing Towers and Pre-existing Antennas. Any tower or antenna for which a building permit or wireless telecommunications permit (WTP) was issued prior to the effective date of this Title, including permitted towers or antennas that have not yet been constructed so long as such approval is current and not expired.

Public Drainage System. The system of storm sewers, channels, culverts, creeks, flows within public streets, and associated detention and water quality structures owned and maintained by the City of Cheyenne, Laramie County, or the Wyoming Department of Transportation.

Public Land. Land owned, controlled and/or operated by a governmental unit.

Published Notice. A notice provided in accordance with Wyoming Statutes.

Redevelopment. The replacement of impervious surfaces on a developed site that is surrounded by urban development on at least three sides. Redevelopment occurs when the existing facilities are demolished and rebuilt or substantially changed through reconstruction. Resurfacing parking lots with no change in overall dimensions or drainage patterns is not considered redevelopment even if the pavement is completely replaced.

Regional Detention Facilities. A system or parts of a system to control run-off from a defined area within a drainage basin and designed to coordinate with other similar facilities to manage the drainage basin and tributaries, typically considering areas greater than 100 acres or capacities of more than 30 acre-feet or as otherwise specified in a drainage master plan or current Storm Drainage Manual.

Remainder Lot. A lot or tract of land designated on a plat which is not eligible for development, or to service adjacent development, and may be reserved for future platting. A remainder lot shall not be for the purpose of sale, lease, or financing; nor be eligible for development. Remainder lots shall not be required to meet the dimensional standards of the zoning district. Developed properties, excluding land developed for agricultural purposes, are not eligible to be remainder lots. Remainder lot(s) must be referred to as “outlots”, “remainder lots”, or “tracts” on plats.

Right-of-way. Land dedicated and set aside for use by the public, primarily for the right of vehicle or pedestrian travel, but typically designed to include multiple and other public purposes.

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Roadway. That portion of a street designed and intended primarily for vehicles.

Sanitary System. A sewer system or systems including mechanisms of collection, treatment and disposal of domestic and/or commercial sewage.

Screening. A feature used to visually separate elements on abutting or adjacent development sites.

Sidewalk. That portion of a street designed and intended primarily for use of pedestrians.

Sign. Any announcement, declaration, demonstration, display illustration or insignia, or other identification, that is visible from any public place or is located on private property and exposed to the public and that directs attention to a product, service, place, activity, person, institution, business or solicitation, including structures that exist to support or enhance the sign.

Sign, Animated. A sign that uses movement or change of lighting to depict action or create a special effect or scene.

Signs, Building Marker. A sign indicating the name of a building, a date and incidental information about its construction, cut into a masonry surface or made of bronze or other permanent material.

Sign, Abandoned. A sign which no longer identifies or advertises a bona fide business, service, owner, product, or activity, and/or for which no legal owner can be found.

Sign, Electronic Message Center. A sign where alphabetic, pictographic or symbolic informational content can be changed or altered on a fixed display surface composed of electrically illuminated or mechanically driven, changeable segments.

Sign, Government. A sign erected and maintained by the United States or state of Wyoming, or any political subdivision thereof, for traffic direction or for designation of or direction to any school, hospital, historical site or public service, property or facility.

Sign, Nameplate. A sign giving only the name, address and/or occupation of an occupant or group of occupants.

Sign, Portable. A sign not permanently attached to the ground or other permanent structure, or a sign designed to be transported, including, but not limited to, signs designed to be transported by means of wheels, signs converted to A- or T-frames, and balloons used as signs. "Portable sign" shall not include umbrellas used for advertising, signs carried by

individuals, and signs attached to or painted on vehicles parked and visible from the public right-of-way when such vehicle is used in the normal day-to-day operations of a business.

Site Plan. A plan of the land showing the existing and proposed features for the property.

Static. Having no motion within a particular message or copy displayed on a digital billboard.

Storm Sewer. An underground pipe system that carries stormwater from streets and other surfaces and discharges directly to a pond, stream or river; used interchangeably with the term "storm drain."

Stormwater Management. Anything associated with the planning, construction, maintenance, or regulation of facilities which collect, store, convey or treat stormwater.

Storm Water Pollution Prevention Plan (SWPPP). A written plan required under state and federal stormwater discharge permits identifying measures that will be implemented to minimize the discharge of pollutants in stormwater. Requirements for SWPPPs are specified in state and federal discharge permits. Requirements vary depending on whether the discharge permit is associated with municipal, industrial, or construction activities.

Stormwater Retrofit. A stormwater management practice designed for an existing development site that previously had either no stormwater management practice in place or a practice inadequate to meet the stormwater management requirements of the site.

Stormwater Runoff. Also known as *Stormwater*, means flow on the surface of the ground, resulting from precipitation. Interchangeable terms include drainage and runoff.

Street. Any public way for the movement of vehicular and pedestrian traffic which is an existing federal, state, county or municipal roadway; or a right-of-way shown upon a plat, and approved pursuant to law, whether improved or unimproved, and may comprise pavement, shoulders, curbs, gutters, sidewalks, parking areas and other areas within the right-of-way.

Street, Arterial. Refers to the functional classification of a street in the entire transportation network, which has considerable continuity over long distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

ARTICLE 1

GENERAL PROVISIONS

1.4 INTERPRETATION

Street, Collector. Refers to the functional classification of a street in the entire transportation network, which has moderate continuity over medium distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Local. Refers to the functional classification of a street in the entire transportation network, which has limited continuity except for short distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Structure. That which is built or constructed, an edifice, or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

Tiedown. Any device designed to anchor a manufactured home or any other accessory building or structure to the ground.

Temporary Use. A use or activity that is intended to occupy the site on a non-continuous basis for more than 14 days.

Tower. Any structure that is designed and constructed primarily for the purpose of supporting one or more antennas for telephone, radio and similar communication purposes, including self-supporting lattice towers, guyed towers or monopole towers. The term includes, but is not limited to, radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers, alternative tower structures and any tower support.

Tract. A unit of land established by a plat or otherwise as permitted by law, designated for limited or no development as part of an approved plan for a legitimate public or community purpose and designated for public or common ownership and maintenance.

Traffic-control Devices. Signs, signals, markings, or other approved geometric designs in the roadway approved by the public body or official having jurisdiction for the purpose of regulating, warning, guiding, or calming traffic.

Triple frontage lot. See "Lot, triple frontage."

Unit Space. A designated portion of a manufactured home park for the accommodation of one manufactured home.

Urban Drainage and Flood Control District (UDFCD). The

metropolitan Denver drainage organization.

Utilities, Essential Services. Those utility facilities that provide end user services to customers. They include local distribution and collection lines for gas, electricity, water, sewer, telephone or cable TV services throughout neighborhoods and connect with each customer. They consist of cables, wires or pipes with limited capacities and the associated hardware, such as transformers, relays and shut-off valves. They also consist of traffic-control boxes and traffic signal installations.

Utility Facilities. Any utility facility, whether or not regulated by the Wyoming Public Service Commission, not described as an essential service utility.

Wall, Retaining. A physical barrier necessary to prevent erosion and/or retain earth.

Water Quality Capture Volume (WQCV). Represents runoff from frequent storm events such as the 80th percentile storm. The volume varies depending on local rainfall data. The WQCV is based on runoff from 0.6 inches of precipitation (approximately 0.5 inches of runoff).

Water System. A public or private system of providing potable water to a structure for domestic use.

Woonerf. A street designed for use by pedestrian and vehicular traffic, where the pedestrian has the right-of-way.

WyDEQ. The Wyoming Department of Environmental Quality.

1.4.4 Descriptions of Uses of Land and Buildings

This section contains general descriptions associated with the uses of land and buildings. It is organized according to categories of uses and specific types of uses within each category. These categories and types correspond to the Use Table in Article 5, Zoning Regulations. Where a use appears to meet two or more descriptions or where a use is not described, the Director shall make a determination. If a use meets all of the characteristics of a use category and use type, or is so similar to a described use type as to create no anticipated differential impact, the Director may interpret that the described use includes the additional use. In making this determination, the Director shall compare: (a) the intensity and scale of the use relative to the site; (b) the typical site and building designs associated with the use; (c) the functional or operational characteristics and the potential impacts of the use on adjacent property; and (d) the potential contribution of the use to the overall character of the district or

Medical Care, Office. A Service use where physicians, dentists, or other health care professionals carrying on their professions. A medical office may include a dental or medical laboratory, but may not include in-patient care or operating rooms for major surgery and may not be open for after-hours emergency care.

Medical Care, Hospital. A Service use providing health services, primarily for inpatients, and medical or surgical care of the sick or injured, including as an integral part of the institution such related facilities as laboratories, outpatient departments, training facilities, central service facilities and staff offices.

Mini Storage. A Service use where a building or group of buildings in a controlled access and fenced compound that contains varying sizes(s) of individual, compartmentalized and controlled-access stalls or lockers for the storage of a customer's goods or wares. Mini Storage may include individual units accessed from inside of a building offered for rent or lease for the storage of personal property. It may also include parking areas for the storage of vehicles, trailers, recreational vehicles, boats, snow mobiles and other similar items as an accessory use. Outdoor storage, or the storage of junk, explosives, or flammable materials and other noxious or dangerous materials are specifically prohibited.

Storage, Yard. A Service use where exterior yards are leased for the outdoor storage of large-item personal property such as boats or recreational vehicles.

and where each owner or tenant typically employs less than 20 employees on premises. Examples include small-scale professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which can operate within the unit square footage and employee limits of this category.

Office - General. An Employment use where individual units of gross leasable area are between 3,500 and 20,000 square feet, and where each owner or tenant typically employs between 20 and 100 employees on premises. Examples include large professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which exceed the Office - Limited category, or other moderate size business or corporate employment operations.

Major Office or Office Complex. An Employment use where individual units of gross leasable area may be more than 20,000 square feet in a single building or group of buildings, and each owner or tenant may typically employ more than 100 employees on premises. Examples include major professional service firms or large corporate offices.

- d. **Employment Uses.** The Employment use category is for businesses engaged in administrative, clerical, and professional operations and support, where products or services are of the nature that generally, when compared to Retail Use Types, do not require daily on-premise interactions with the clients, customers or patrons, and where lots and buildings are not primarily designed to maximize exposure to the public-at-large.

Home Occupation. A business which is carried on entirely within a legal or legal non-conforming dwelling or allowed accessory building, and which is clearly incidental and secondary to the use of the premises as a dwelling.

Office - Limited. An Employment use which is not an accessory to another use, but limited individual units of gross leasable area are less than 3,500 square feet,

- e. **Commercial Uses.** The Commercial use category is for businesses engaged in the exchange of merchandise for general consumers, and nature of the exchange generally requires frequent interactions with the clients, customers or patrons on the premises, where lots or buildings are primarily designed for exposure to the public-at-large.

Convenience Retail / Corner Store (<2k). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 2,000 square feet of gross leasable area. Convenience Retail / Corner Store uses are characterized by target market areas of less than 1/4 mile radius for most of its on-premise sales or are associated accessory to an employment or service business.

Neighborhood Retail (<5K). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 5,000 square feet of gross leasable area. Neighborhood retail uses are characterized by a target market area of less than 1/2 mile radius for most of its on premise sales.

General Retail (5K - 25K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise, and consumer products and involving between 5,000 and 25,000 square feet of gross leasable area. General Retail uses are characterized by a target market area of less than 1 mile radius for most of its on-premise sales.

Large-scale Retail (25K - 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise or general consumer products and involving between 25,000 and 100,000 square feet of gross leasable area. Large-scale Retail uses are characterized by a target market area that may be greater than 1 mile radius for the on-premise component of its sales.

Warehouse Retail (> 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty products, general consumer products, or wholesale products and involving greater than 100,000 square feet of gross leasable area. Warehouse Retail uses are characterized by a target market area that may be more than 1 mile radius for most of its sales.

Grocery Store (<45K). A Commercial use engaged in the retail sale of a broad range of food products and limited household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A grocery store involves less than 45,000 square feet of gross leasable area and is characterized by a target market of less than 1-mile radius.

Supermarket (> 45K). A Commercial use engaged in the retail sale of a broad range of food and household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A supermarket typically involves more than 45,000 square feet of gross leasable area and is characterized by a target market of greater than 1-mile radius.

Outdoor Sales, Limited. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent

to less than 10% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one-week at a time with at least 4 weeks between consecutive events.

Outdoor Sales, Seasonal. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 20% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one month at a time with at least 2 months between consecutive events.

Outdoor Sales, Event or Display Area. The display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use that does not meet the limitations of Limited or Seasonal Outdoor Sales, and which may require areas to be designed and dedicated for display when part of the permanent operations of an interior retail business. Examples include lumber yards and garden centers.

Outdoor Sales. The display and sale of merchandise where the primary business is generated by merchandise displayed permanently and year round on an exterior portion of the site. Examples include automobile sales and implement sales.

Bars. A Commercial use primarily engaged in serving alcoholic beverages for consumption on-premises. Any food or entertainment services are generally secondary or accessory to the business.

Liquor Store. A Commercial use engaged primarily in the retail sale of alcoholic beverages for consumption off-premises. The sale of food or accessory beverage supplies are generally secondary or accessory to the business.

*Automobile **Service Repair.*** A Commercial use engaged in the repair, maintenance, **or** condition, **detailing, or cleaning** of motor vehicles and including the accessory sales of lubricants, parts, or accessories. **Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.**

Automobile Service Station – Limited. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services. This use is limited to no more than 2 fuel pump islands and no more than 8 fueling stations.

Automobile Service Station – General. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use is limited to no more than 4 fuel pump islands and no more than 16 fueling stations.

Automobile Service Station – Large-scale. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use may have more than 4 fuel pump islands and more than 16 fueling stations.

Food Service – Limited (< 2K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including less than 2,000 square feet of seating area.

Food Service – General (2K – 4K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including between 2,000 and 4,000 square feet of seating area.

Food Service – Large-scale (> 4k). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on site and including more than 4,000 square feet of seating area.

- f. **Industrial Use Category.** The Industrial use category is for businesses engaged in manufacturing, fabrication, warehousing, processing, wholesale or disposal of goods, products and component parts, and services related to these businesses. These uses typically belong in a special district due to their inability to blend with the uses from other use categories, except when occurring at the smallest scale.

Data Center. A use consisting of buildings or structures specifically designed or modified to house networked computers and data and transaction processing equipment and related infrastructure

support equipment, including power and cooling equipment. A data center may be used to provide data and transaction processing services, outsource information technology services and/or computer equipment colocation services. A data center may also include buildings or structures that support the operation of the data center including retrofit buildings, warehousing for logistics, independent network buildings, buildings for support staff, and emergency generators. A Data Center shall not include activities which consistently produce noise discernable at the property line. Should a Data Center produce noise discernable at the property line, it shall be classified as an Industrial use.

Limited Industrial. An Industrial use where small-scale activities produce no byproducts such as smoke, odor, dust or noise discernable from the outside of the building in which it is located. Individual facilities typically occupy less than 10,000 square feet of gross leasable area and distribution and deliveries are commonly made by general consumer delivery services, requiring no significant truck access. A retail, showroom, or service component is often associated with the use. Examples include artist studios, metal and wood shops, arts and crafts manufacturing, small appliance or machine repairs, or other small-scale assembly of finished parts or products from previously prepared materials.

Moderate Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from outside of the building in which it is located. Distribution and deliveries can occur from general consumer delivery services or limited commercial truck access. Examples include research labs or facilities, small electronics or computer assembly and manufacturing, furniture assembly.

General Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from beyond the property boundary. Operations may require commercial vehicle access for distribution and deliveries. Examples include non-animal food processing, commercial warehouses or wholesale distribution centers or energy industry services.

Industrial. An Industrial use capable of producing significant byproducts discernable from outside the building and property including noise, odors, or other

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTIONS 1.4.3, 1.4.4, AND 5.7.2 OF THE UNIFIED DEVELOPMENT CODE TO AMEND SPECIFIC USES ALLOWED AS HOME OCCUPATIONS AND ADD CLARIFYING DEFINITIONS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code of the City of Cheyenne (UDC).

Section 2. That on April 21, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.3 of the UDC is amended to add the following definitions and read as shown in Exhibit A, which is attached hereto and incorporated herein.

Massage Parlor. A business establishment where massage services are provided, which does not meet the definition of Massage Therapy.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a massage therapist, who typically undergoes extensive training and holds a license to practice.

Section 4. That Section 1.4.4.e of the UDC is amended as follows and to read as shown in Exhibit A, which is attached hereto and incorporated herein.

Automobile Service Repair. A Commercial use engaged in the repair, maintenance, ~~or~~ condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.

Section 5. That Section 5.7.2 of the UDC is hereby amended to read:

5.7.2 Home Occupations

In districts where home occupations are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

- a. Home occupations include, but are not limited to, arts and crafts-making, tailoring or seamstress services, one or two person professional offices (medical, insurance, law, etc.), music instruction and wholesale/catalogue sales.

- b. Home occupations are intended to allow limited business activity from the home but shall not alter the character of the neighborhood.
- c. Additional off-street parking may be required for the home occupation business if more than three clients per day are expected to visit the business or if vehicles associated with the business are stored at the place of the home occupation. No additional parking spaces shall be provided in the front yard setback (or within the side yard setback if the property is a corner lot). Where needed additional parking would alter the character of the neighborhood the home occupation shall be prohibited.
- d. There shall be no offensive noise, vibration, smoke, dust, odors, heat or glare noticeable at or beyond the property line.
- e. No exterior storage of materials or equipment is permitted. No storage of more than one motorized vehicle and trailer associated with the business may be in the public right-of-way.
- f. Signage will be limited to one non-illuminated sign not more than three square feet in area per home.
- g. No retail sales are permitted from the site other than incidental sales related to services provided.
- h. Not more than one employee or co-worker other than the permanent resident(s) can work from on the site.
- i. An “in-home” business operating from a residential dwelling within shall be registered in the home occupation data base, administered through the City Planning and Development Department and all applicable registration fees shall be paid.
- j. Specific Exclusions. The following businesses shall not be allowed as home occupations:
 - 1. ~~Auto body or mechanical repair, to include any modification, assembly or painting of motor vehicles and repair of internal combustion engines;~~ Automobile Service Repair, however automobile detailing and/or cleaning shall be allowed as a home occupation with the following additional restrictions:
 - (a) No more than three customers per day.
 - (b) No more than one customer vehicle parked at the property at a time.
 - (c) Vehicles that are being serviced must be parked on the property and cannot be parked in the street at any time.
 - 2. ~~Massage parlors; technicians;~~
 - 3. Beauty parlors/salons, nail salons and barber shops if employing anyone other than the permanent residents of the property;
 - 4. Animal grooming salons and boarding kennels;
 - 5. Body piercing/body art/tattoo art;:-
 - 6. Massage Therapy if employing anyone other than the permanent residents of the property.
- k. Specific Allowances.
 - 1. Mobile Service Providers Permitted at Client Residences. Certain businesses that involve providing services at a client’s home are permitted to operate at the client’s residence and are not subject to home occupation regulations at that location provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include house-call veterinarians, mobile massage therapists, mobile pet groomers, and similar providers.

2. Office-Only Use for Off-Site Businesses. A business that is not typically permitted to operate as a home occupation may be allowed if the home is used exclusively for office-related functions and no clients, customers, employees, or business activities take place at the home provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include administrative work, scheduling, bookkeeping, or storage of vehicles or materials related to businesses that operate off site like food trucks, lawn care businesses, snow removal services, etc.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

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PLANNING COMMISSION

APRIL 21, 2025

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Section 1.4.3, 1.4.4.e, and 5.7.2.

CASE NUMBER: PLTA-25-3

PREPARED BY: Connor White, Planner II, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Sections 1.4.3, 1.4.4.e, and 5.7.2 as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are to the Home Occupation requirements, the addition of two definitions and amending a current use within the UDC. The changes to the Home Occupation regulations are from public requests to allow different uses as home occupation, specifically Massage Therapy and solons / beauty parlors. This public request was brought forward during the discussion on the annual review and was deemed an appropriate section of code to modify. While modifying the Home Occupation section of code, Staff would also like to clarify certain practices that are currently ambiguous in the code as written.

During the annual review process in 2024 there was a public request to allow Massage Therapy as a home occupation. Currently in the UDC it prohibits Massage Parlors / technicians. There are no current definitions within the UDC for parlors or for therapy. Staff researched the differences between the two and created definitions for each use as they are different. Therapy often requires training, licensing and

certifications, whereas parlors do not. Massage Therapy is also considered a medical service that aims to address health concerns. Staff believes that massage therapy can be a home occupation as long as only the permanent resident is the one employed at the location.

During the annual review process this year, 2025, there was a request from the public to allow beauty parlors or salons as home occupations. Currently the UDC prohibits them from being home occupations. Staff's review is that these types of home occupations can be possible if the permanent resident or current resident of the home is the sole operator. These would be very small scale with maybe a single chair and would allow someone who is just starting up to operate out of their home until they can move into a commercial space. It could also allow for someone to run this use as a side business where they only operate a few days of the week.

Certain sections of the current Home Occupation code have some ambiguity which Staff would like to clarify with this edit:

- Exterior storage: Strictly speaking, exterior storage as written could be interpreted to prevent business-oriented vehicles from being parked in a driveway on the property. Proposed edits would clarify that vehicles may be stored externally, but that they must be on the property.
- Signage: Typically, signage for residential properties is expected to be non-illuminated. This is specifically required with this code amendment.
- Fee payment: Home occupations have an application fee set by Resolution. Adding a mention of the fee to this section helps set expectations for anyone who is just reviewing this section of code.
- Automobile cleaning and detailing: The UDC definition of *Automobile Repair* includes maintenance and conditioning of vehicles, and since there is no specific use for cleaning vehicles in the UDC, Staff has included cleaning in the *Automobile Repair* category. The definitions section and the use table do not match ("*Automobile Service Repair*" and "*Automobile Repair*"). The Home Occupation section uses similar, but not identical language "*Auto body or mechanical repair, to include any modification, assembly or painting of motor vehicles and repair of internal combustion engines*". This has led to confusion regarding the use of a property for detailing and cleaning of motor vehicles. Staff proposes the following clarifications:
 - o Changing the language in the definitions section to match the use table and specifically including cleaning, detailing, and repair of any internal combustion engine
 - o Changing the language in the Home Occupations section to match the use table and the definition
 - o Clarifying that detailing and cleaning are allowed under certain limitations.

Staff would note that the development office has received complaints from neighbors that cleaning/detailing businesses should not be allowed as Home Occupations, and has also received concerns from those types of businesses that they should be allowed as home occupations. Staff has prepared this ordinance to allow the business with some specific limitations.

- Off-site services: Staff has generally been allowing businesses which perform work off-site as home occupations as long as they meet materials storage requirements (such as a mobile pet grooming business). This code amendment proposes codifying this allowance.

PROPOSED AMENDMENTS:

Amend UDC Section 1.4.3, Defined Terms, to add Massage Parlor and Massage Therapy.

Massage Parlor. A business establishment where massage services are provided which does not meet the definition of Massage Therapy.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a massage therapist, who typically undergoes extensive training and holds a license to practice.

Amend UDC Section 1.4.4.e, specifically Automobile Repair.

Automobile ~~Service~~ Repair. A Commercial use engaged in the repair, maintenance, ~~or~~ condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. ~~Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.~~

Amend UDC Section 5.7.2, Home Occupations:

5.7.2 Home Occupations

In districts where home occupations are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

- a. Home occupations include, but are not limited to, arts and crafts-making, tailoring or seamstress services, one or two person professional offices (medical, insurance, law, etc.), music instruction and wholesale/catalogue sales.
- b. Home occupations are intended to allow limited business activity from the home but shall not alter the character of the neighborhood.
- c. Additional off-street parking may be required for the home occupation business if more than three clients per day are expected to visit the business or if vehicles associated with the business are stored at the place of the home occupation. No additional parking spaces shall be provided in the front yard setback (or within the side yard setback if the property is a corner lot). Where needed additional parking would alter the character of the neighborhood the home occupation shall be prohibited.
- d. There shall be no offensive noise, vibration, smoke, dust, odors, heat or glare noticeable at or beyond the property line.
- e. No exterior storage of materials or equipment is permitted. ~~No storage of vehicles associated with the business may be in the public right-of-way.~~
- f. Signage will be limited to one non-illuminated sign not more than three square feet in area per home.
- g. No retail sales are permitted from the site other than incidental sales related to services provided.
- h. Not more than one employee or co-worker other than the permanent resident(s) can work ~~from~~ on the site.
- i. An "in-home" business operating from a residential dwelling within shall be registered in the home occupation data base, administered through the City Planning and Development Department ~~and all applicable registration fees shall be paid.~~
- j. Specific Exclusions. The following businesses shall not be allowed as home occupations:
 1. ~~Auto-body or mechanical repair, to include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.~~ Automobile Service Repair, however automobile detailing and/or cleaning shall be allowed as a home occupation with the following additional restrictions:
 - i. No more than three customers per day.
 - ii. No more than 1 customer vehicle parked at the property at a time.
 - iii. Vehicles that are being serviced must be parked on the property and cannot be parked in the street at any time.
 2. Massage parlors/~~technicians~~;
 3. Beauty parlors/~~salons~~, nail salons and barber shops ~~if employing anyone other than the permanent residents of the property~~;
 4. Animal grooming salons and boarding kennels;
 5. Body piercing/body art/tattoo art.
 6. Massage Therapy if employing anyone other than the permanent residents of the property;

k. **Specific Allowances.**

1. **Mobile Service Providers Permitted at Client Residences.** Certain businesses that involve providing services at a client's home are permitted to operate at the client's residence and are not subject to home occupation regulations at that location provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include house-call veterinarians, mobile massage therapists, mobile pet groomers, and similar providers.
2. **Office-Only Use for Off-Site Businesses.** A business that is not typically permitted to operate as a home occupation may be allowed if the home is used exclusively for office-related functions and no clients, customers, employees, or business activities take place at the home provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include administrative work, scheduling, bookkeeping, or storage of vehicles or materials related to businesses that operate off site like food trucks, lawn care businesses, snow removal services, etc.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

This proposed text amendment is necessary to address an issue not anticipated in the Comprehensive Plan when the Unified Development Code (UDC) was adopted. There are more people looking at starting small businesses out of their homes to help support them. Some of these business may have been allowed back in the day, but then were prohibited with the adoption of the UDC. This amendment would allow for more types of home occupations in a limited capacity.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601.

The governing body of any city or town, by ordinance, may:

- (b) The governing body may divide the city or town into districts of such number, shape and area as it deems necessary, and within those districts it may regulate and restrict the erection, construction, reconstruction, alteration, repair or use of buildings, structures or land.

Assessment: This amendment proposes allowing additional uses as home occupations and defining specific uses.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment allows for additional uses as home occupations which have been requested by the public. It will allow for more small business to help those just starting out or for those doing them on the side to support their family or themselves.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code Sections 1.4.3, 1.4.4.e, 5.7.2 as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.
